

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Moran	Team: Squad #6	CCRB Case #: 202007361	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Saturday, 10/17/2020 3:00 AM	Location of Incident: § 87(2)(b)	Precinct: 73	18 Mo. SOL 4/17/2022	EO SOL 5/4/2022	
Date/Time CV Reported Sat, 10/17/2020 10:58 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/06/2020 10:58 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Peter Amorello	18567	954485	073 PCT
3. PO Nicolo Carbonetto	03105	964422	073 PCT
4. LT James Berk	00000	949358	IAB
5. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vinson Hartenfels	7285	954919	073 PCT
2. POM Michael Anes	16856	960163	073 PCT
3. PO Osama Ali	04778	965650	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A. An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)	§ 87(2)(b)
B. PO Nicolo Carbonetto	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Nicolo Carbonetto threatened to arrest § 87(2)(b)	§ 87(2)(b)
C. Officers	Force: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	§ 87(2)(b)
D. LT James Berk	Abuse: At § 87(2)(b) in Brooklyn, Lieutenant James Berk damaged § 87(2)(b)'s property.	§ 87(2)(b)
E. LT James Berk	Abuse: At § 87(2)(b) in Brooklyn, Lieutenant James Berk entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
F. Officers	Abuse: At § 87(2)(b) in Brooklyn, officers refused to provide their name to § 87(2)(b)	§ 87(2)(b)
G. Officers	Abuse: At § 87(2)(b) in Brooklyn, officers obstructed their shield number.	§ 87(2)(b)
H. Officers	Abuse: At § 87(2)(b) in Brooklyn, officers forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
I. POM Peter Amorello	Abuse: At § 87(2)(b) in Brooklyn, Police Officer Peter Amorello refused to provide his name to § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 17, 2020, § 87(2)(b) filed the following complaint with IAB under IA log number 2020-25036.

On October 17, 2020, at approximately 3:00 a.m., § 87(2)(b) was in her yard at § 87(2)(b) in Brooklyn with her § 87(2)(b)-old daughter § 87(2)(b) and her § 87(2)(b)-old son § 87(2)(b) when multiple police officers from the 73rd Precinct responded to a call about a physical fight outside. While officers spoke with § 87(2)(b) in the front yard, an officer allegedly told § 87(2)(b) to “stop acting like Breonna Taylor and get your bitch ass in the house” (**Allegation A: Discourtesy – § 87(2)(g)**). PO Nicolo Carbonetto of the 73rd Precinct then told § 87(2)(b) to go inside her house before someone got arrested (**Allegation B: Abuse of Authority – § 87(2)(g)**).

PO Michael Anes, PO Carbonetto, PO Osama Ali, and PO Vinson Hartenfels of the 73rd Precinct then approached § 87(2)(b) to handcuff her and, in the process, an officer tripped § 87(2)(b) and she hit the ground. Officers then pinned her limbs to the ground and handcuffed her (**Allegation C: Force – § 87(2)(g)**). Under the supervision of Lt. James Berk of the 73rd Precinct, PO Hartenfels then kicked the door open, breaking the top cylinder as well as the door frame and entered § 87(2)(b)'s apartment (**Allegations D and E: Abuse of Authority – § 87(2)(g)**). § 87(2)(b) was then brought to the ambulance and while in the ambulance, she asked officers for their names. The officers did not answer and covered their shields and names with their hands and pieces of paper (**Allegations F and G: Abuse of Authority – § 87(2)(g)**). After the decision to enter the apartment, § 87(2)(b) was then removed to the hospital for psychiatric evaluation (**Allegation H: Abuse of Authority – § 87(2)(g)**). When § 87(2)(b) arrived at § 87(2)(b) she asked PO Peter Amorello of the 73rd Precinct for his name, but he allegedly did not respond (**Allegation I: Abuse of Authority – § 87(2)(g)**). § 87(4-b) § 87(2)(g)

§ 87(2)(b) sustained abrasions to her face, hands, and foot as well as a contusion to the scalp (BR 01). § 87(2)(b) was not arrested or issued any summonses in regards to this incident.

Eleven BWC were obtained in regards to this incident (BR 02 – 12). No BWC captured the incident in the hospital as the Patrol Guide prohibits it and no force was alleged during the time.

Findings and Recommendations

Allegation (A) Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Nicolo Carbonetto threatened to arrest § 87(2)(b)

It is undisputed that PO Carbonetto threatened to arrest § 87(2)(b)

Event #§ 87(2)(b) was noted as a physical fight outside at § 87(2)(b) in Brooklyn involving two females and three females with an unknown injured individual (BR 39).

At the 1:16 mark of PO Carbonetto's BWC, § 87(2)(b) repeatedly told the officers to get out of her yard. At the 1:43 mark, PO Carbonetto told § 87(2)(b) that she would be “locked up” if she did not stop. § 87(2)(b) asked what she would be arrested for, and PO Carbonetto responded that he was being nice to her. At 2:16 minutes, § 87(2)(b) told PO Carbonetto that they would not shoot her like Tiana Taylor [sic] and PO Carbonetto responded that he did not want to shoot anyone

and just wanted to see if she was okay. PO Carbonetto can then be heard asking § 87(2)(b)'s children if they are okay. At the 2:48 mark, PO Carbonetto repeatedly told § 87(2)(b) to go inside. He went on to say that the officers will leave if § 87(2)(b) went inside her house (BR 07).

At the 33 second mark of PO Anes' second BWC, § 87(2)(b) told the officers they would not shoot her like Tiana Taylor. PO Anes corrected her and said her name was Breonna Taylor. At the 1:17 mark, § 87(2)(b) told the officers "There was no good example after they killed Tiana Taylor." PO Anes again stated her name was Breonna Taylor. § 87(2)(b) repeated the name Breonna Taylor and told PO Anes he "got that shit right." At the 3:02 mark, § 87(2)(b) told her children that they could be dead in their yard like Tiana Taylor. PO Anes stated her name was Breonna. § 87(2)(b) then repeated the name Breonna Taylor again. The entire incident was captured on BWC and showed no profanity was used (BR 05).

At the 3:49 mark of Lt. Berk's first BWC, § 87(2)(b) was wearing a long sleeve shirt and pants that stop at her knees. § 87(2)(b) only had boxer shorts on (BR 11).

§ 87(2)(b) testified that nothing out of the ordinary had happened on October 17, 2020. At around 3:00 a.m., she was outside cleaning the yard with her mother and brother, when multiple officers responded to § 87(2)(b)'s house. She did not know why officers came to the house. § 87(2)(b) was in the front yard when one of the officers told § 87(2)(b) "Miss stop acting like Breonna Taylor and get your bitch ass in the house." The officers then approached § 87(2)(b) and § 87(2)(b) and asked why they were standing outside in the yard in the cold weather. The officers ordered them inside and PO Carbonetto added that they needed to go inside before someone gets arrested (BR 14 - 15).

Neither § 87(2)(b) nor § 87(2)(b) alleged any use of profane language or threats of arrest by officers. § 87(2)(b) testified that she was in her front yard at § 87(2)(b) removing trash with § 87(2)(b) and § 87(2)(b) when officers arrived. Her ex-boyfriend was not present. An officer then told § 87(2)(b) they had received a noise complaint from a neighbor, but § 87(2)(b) denied seeing any neighbors that night. § 87(2)(b) told the officers she did not call 911 and loudly told the officers to leave. § 87(2)(b) testified that he and § 87(2)(b) went outside because he heard his mother yell at someone to stay out of her yard. When he got outside, there were multiple officers present and § 87(2)(b) was picking up trash. Nothing unusual happened at their house that night and § 87(2)(b) did not know why officers responded (BR 13, 16).

PO Anes testified that officers responded to § 87(2)(b) for a call about a physical fight between § 87(2)(b) and her boyfriend. PO Anes observed § 87(2)(b) and § 87(2)(b) outside in the front yard partially dressed in pajamas and undergarments. They appeared as if they were trying to stay warm. Given that it was cold outside, officers had safety concerns about the children. PO Anes testified that § 87(2)(b) who was also in the front yard, could have been arrested for endangering a child. He did not hear any officer say, "Miss stop acting like Breonna Taylor and get your bitch ass in the house." While officers were trying to get § 87(2)(b) inside, § 87(2)(b) said, "What are you going to do? Shoot me like Tatiana Taylor [sic]" and PO Anes told § 87(2)(b) that her name was actually Breonna Taylor. He did not respond to § 87(2)(b) or have any conversation with her (BR 18).

PO Anes' memo book noted he responded to a physical fight at § 87(2)(b) in Brooklyn (BR 38).

§ 87(2)(g) After observing the children in the yard and speaking with them about how to get inside, PO Carbonetto

told § 87(2)(b) she could be arrested. There was no additional conversation between PO Carbonetto and § 87(2)(b) and no additional people in the vicinity. PO Carbonetto testified that § 87(2)(b) could have been arrested for acting disorderly by yelling and cursing at the officers to “suck my dick,” obstructing governmental administration (OGA), and possibly endangering her children (BR 20).

PO Hartenfels, PO Amorello, and PO Ali all had consistent testimony that they did not hear an officer use profanity when speaking with § 87(2)(b). The officers testified that she could have been arrested for endangering the welfare of a child because of the clothing the children were wearing and the temperature that night (BR 17, 19, 21).

A person is guilty of endangering the welfare of a child when he or she knowingly acts in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old or directs or authorizes such child to engage in an occupation involving a substantial risk of danger to his or her life or health New York State Penal Code § 260.10 (BR 24). A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance of alarm, or recklessly creating a risk thereof: he engages in fighting or in violent, tumultuous or threatening behavior; or he makes unreasonable noise; or in a public place, he uses abusive or obscene language New York State Penal Code § 240.20 (BR 40).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (C) Force: At § 87(2)(b) in Brooklyn, officers used physical force against

§ 87(2)(b)

At 7:52 minutes of PO Anes’ second BWC, PO Anes took his handcuffs out and approached § 87(2)(b). He grabbed her by the arm and then the video was too dark to distinguish any of the figures or actions taken on screen. PO Anes can be heard telling § 87(2)(b) to roll over as she yelled at the officers to get off of her. At the 8:26 mark, PO Anes told § 87(2)(b) to give him her hands and told an officer to pull § 87(2)(b)’s leg.

At the 7:53 mark of PO Carbonetto’s BWC, he told § 87(2)(b) to let her children inside the house or they would remove her to the hospital. § 87(2)(b) refused and continued to yell at the officers to shoot her in the head. PO Carbonetto continued to repeat the command to let her children inside. At the 9:40 mark, PO Anes approached § 87(2)(b) and PO Carbonetto followed. § 87(2)(b) then repeatedly yelled for the officers to get off of her. At 10:37 minutes, PO Carbonetto told § 87(2)(b)

§ 87(2)(b) to give them her hand and he and another officer told § 87(2)(b) they were taking her to the hospital. At the 11:14 mark, § 87(2)(b) yelled for someone to get off her leg. The video was too dark to distinguish if someone was on her leg or what specific police actions were taken.

§ 87(2)(b) testified that while she was cleaning trash in her front yard, officers responded and told her to come to the sidewalk. § 87(2)(b) refused to comply. An officer grabbed her arm. An officer then put his foot in front of § 87(2)(b) and tripped her while additional officers pushed her on her back, arms, and legs. Another officer tried to gently lower § 87(2)(b) onto the ground, she tripped and landed hard her front. No officer issued any instructions during this time. While on the ground, § 87(2)(b) did not move her arms or legs, but officers told each other to her arms and legs while they pinned her to the ground.

As a result of being taken to the ground, § 87(2)(b) sustained scrapes and bruises to her face. § 87(2)(b) provided photographs of cuts to her right eye and under her left eye as well as a laceration to her right foot. § 87(2)(b) went to § 87(2)(b) for her injuries and psychiatric evaluation. Her medical records were never obtained because § 87(2)(b) did not sign the HIPAA forms.

As § 87(2)(b) could not state who tripped or pushed her and video did not assist with identifying the officer, this allegation is pleaded to “officers”.

§ 87(2)(b) testified that as an officer was attempting to put § 87(2)(b) in handcuffs, § 87(2)(b) resisted by walking away. Another officer then stuck his leg out to trip § 87(2)(b) and she fell to the ground face first. Once § 87(2)(b) was on the ground, officers were on top of her securing her arms and legs while § 87(2)(b) screamed for them to get off of her. § 87(2)(b) could not move while on the ground and the officers successfully handcuffed her. § 87(2)(b) sustained cuts on her knees, arms and head as a result of being taken down to the ground. § 87(2)(b) had trouble getting up after being tackled and had some leg pain.

§ 87(2)(b) testified that § 87(2)(b) continued yelling at the officers when they entered the front yard, so they said she was becoming aggressive and had to be restrained. As the officers handcuffed § 87(2)(b) she tried to get away from officers by walking away and pushing them. Two officer then pulled § 87(2)(b) and put her on the ground. Once § 87(2)(b) was on the ground, the officers put their knees on her limbs because § 87(2)(b) was moving around and trying to get away from the officers. § 87(2)(b)'s feet and arms were scraped on dirt and trash while she was on the ground. Her face and torso also sustained scratches.

PO Anes testified that he first approached § 87(2)(b) to place her in handcuffs and while he was holding § 87(2)(b) by her arms, she stiffened up and moved her arms away. Additional officers went to assist PO Anes and within five to ten seconds, § 87(2)(b) was taken to the ground. PO Anes could not provide any additional information on how § 87(2)(b) was brought to the ground or which officers assisted. No officer shoved or tripped her in the process. Once § 87(2)(b) was on the ground, she was still resisting by flailing her arms and legs, so officers held § 87(2)(b)'s legs together to prevent her from moving them. PO Anes had one of § 87(2)(b)'s arms in a handcuff and her other was underneath her body. He did not see any officer pin § 87(2)(b)'s legs to the ground.

PO Hartenfels and PO Carbonetto testimonies were consistent with PO Anes', with the additions that they assisted with handcuffing § 87(2)(b) because she was physically resisting by flailing her arms and body, so PO Hartenfels held her legs down while PO Carbonetto held her arms. Neither officer recalled an officer tripping § 87(2)(b) to bring her to the ground.

PO Ali testified that he held § 87(2)(b)'s arm while officers handcuffed her, but he did not recall a physical struggle with handcuffing § 87(2)(b) or if she was ever brought to the ground.

No TRI was prepared (BR 41). Aided #§ 87(2)(b) was prepared by PO Hartenfels and noted that § 87(2)(b) was observed with a laceration on the top of her foot and was highly intoxicated and uncooperative (BR 23).

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Force may be used when a member of service must gain compliance, control, or custody of an uncooperative subject Patrol Guide 221-02 (BR 25).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation (D) Abuse of Authority: At § 87(2)(b) in Brooklyn, Lieutenant James Berk damaged § 87(2)(b)'s property.

Allegation (E) Abuse of Authority: At § 87(2)(b) in Brooklyn, Lieutenant James Berk entered § 87(2)(b) in Brooklyn.

Between the 8:05 and 8:48 mark of PO Amorello's second BWC, § 87(2)(b) provided PO Amorello with a phone number to call to try and get the children inside and told him that she did not have a key because § 87(2)(b) was fighting with her boyfriend and locked them out. During this time, PO Anes tried to press the intercom outside the house and officers continued to knock on the front door. § 87(2)(b) appeared to be shivering during this time. At 9:30 minutes, § 87(2)(b) informed PO Amorello that § 87(2)(b) locked the top lock, not the bottom. At 12:06, an individual yelled and asks if § 87(2)(b) § 87(2)(b)'s younger brother] can open the door. At the 12:23 mark, PO Amorello was making a phone call, but no respondent answered. At the 12:58 mark, § 87(2)(b) screamed § 87(2)(b) and banged on the door. § 87(2)(b) and another individual can then be heard screaming § 87(2)(b) multiple times while another officer banged on the door. At the 14:04 mark, § 87(2)(b)

informed officers there was a § 87(2)(b) and § 87(2)(b)-year-old inside the house (BR 03).

At the 2:21 mark of Lt. Berk's first BWC, he spoke with § 87(2)(b) who was sitting inside a vehicle. § 87(2)(b) stated he came outside because there was a man attacking § 87(2)(b). Lt. Berk then told the children they were going to get them inside the house. PO Hartenfels asked Lt. Berk if he was okay with the officers kicking the door down and Lt. Berk agreed. At the 2:53 mark, PO Hartenfels used his left leg to kick the front door behind him. The door opened and officers entered the building. Lt. Berk then returned to the vehicle and told the children they opened the door. § 87(2)(b) explained to Lt. Berk that § 87(2)(b) was trying to prevent the man attacking her from trying get inside the house and hurting the children, so she locked the door. The children did not realize she locked the door and went outside and got locked out. § 87(2)(b) was dressed in only boxer shorts, while § 87(2)(b) wore a long sleeve t-shirt and pants that stop at her knees. At the 3:58 mark, there was blood on the front door frame and the wall to the right of the entrance. The children then enter an apartment on the third floor and Lt. Berk informed the officers to check the apartment, so the officers entered.

As Lt. Berk was the supervisor on scene, the property damage and entry allegations were plead accordingly.

§ 87(2)(b) testified that after she was handcuffed, she told officers there were two children, § 87(2)(b) and § 87(2)(b) who are § 87(2)(b) and § 87(2)(b) years old respectively, sleeping inside the house. Two officers then went to the front door of § 87(2)(b)'s home. The building is a three-family dwelling, but § 87(2)(b) is the only tenant. She lives on the § 87(2)(b) floor and does not know who owns the building. § 87(2)(b) did not stop the officers from approaching her front door and move towards them in any way. An officer then tried to open the front door, but it was locked so he drove his body into the door, breaking the top cylinder as well as the door frame.

§ 87(2)(b) and § 87(2)(b) testified that officers broke the door open and entered the house.

Lt. Berk testified that after responding to the scene for supervisory assistance, officers informed him children were locked out of the house and there were additional unsupervised children upstairs who were not responding to officers' calls. PO Amorello informed Lt. Berk that officers had tried knocking on the door, ringing the doorbell, and calling a phone number to get in contact with the children upstairs. Lt. Berk spoke with § 87(2)(b) who was standing in his boxers and was visibly shivering and shaking. § 87(2)(b) informed Lt. Berk that § 87(2)(b) had a fight with a boyfriend. Lt. Berk decided they needed to get the children inside due to the safety concerns of the children being outside, so he told PO Hartenfels to take the front door down. Once PO Hartenfels kicked the door open, Lt. Berk entered and saw there was a splatter of blood on the wall to the right of the entrance, which he believed might be connected to the situation with § 87(2)(b) and the boyfriend. Lt. Berk did not observe any damage to the front door. As the children upstairs were unresponsive, Lt. Berk and officers entered the apartment with § 87(2)(b) and § 87(2)(b) to make sure the children were safe. After getting § 87(2)(b) and § 87(2)(b) inside and confirming the additional children upstairs were safe, Lt. Berk and the officers left the apartment (BR 22).

PO Hartenfels, PO Amorello, PO Anes, PO Carbonetto, and PO Ali's testimonies were consistent that the officers had safety concerns with the children because of how cold it was outside.

Under the emergency doctrine, officers may conduct a warrantless entry to prevent loss of life or property. For this exception to apply, the police must have reasonable grounds to believe that an emergency is at hand and an immediate need for their assistance for the protection of life or property. The search must not be primarily motivated by an intent to arrest, and there must be some

reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. People v. Doll, 21 N.Y.3d 665, (2013) (BR 26).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Allegation (F) Abuse of Authority: At § 87(2)(b) in Brooklyn, officers refused to provide their name to § 87(2)(b)

Allegation (G) Abuse of Authority: At § 87(2)(b) in Brooklyn, officers obstructed their shield number.

Allegation (I) Abuse of Authority: At § 87(2)(b) in Brooklyn, Police Officer Peter Amorello refused to provide his name to § 87(2)(b)

At the 24:08 mark of PO Carbonetto's BWC, a female EMT can be heard telling § 87(2)(b) the officers on scene are taking care of her children. § 87(2)(b) then asked the EMT for her name, which she provided as § 87(2)(b). § 87(2)(b) then walked onto the ambulance. PO Carbonetto's BWC was then turned off.

At the 6:16 mark of PO Amorello's first BWC, § 87(2)(b) exited the ambulance with PO Amorello. PO Hartenfels then met the two as they entered the hospital. The BWC is turned off once the officers and § 87(2)(b) enter the hospital.

§ 87(2)(b) testified that while she was in the ambulance, but before the ambulance doors were closed, she asked the officers for their names. The officers did not answer her verbally and covered their shields with their hands and pieces of paper. PO Amorello then accompanied § 87(2)(b) to the hospital. § 87(2)(b) could not provide officer descriptions of any of the officers present. While at the hospital, § 87(2)(b) asked PO Amorello for his name, but he did not respond and then left the hospital.

Lt. Berk testified that when he went to speak with § 87(2)(b) PO Ali and PO Carbonetto were outside the ambulance. Lt. Berk did not hear § 87(2)(b) ask officers for their names and shields and he did not hear any officer refuse to provide that information. Neither he nor any other officer covered their shields with their hands or paper.

PO Amorello, PO Carbonetto, PO Ali, and PO Hartenfels' testimonies were all consistent that they were by the ambulance but could not recall if § 87(2)(b) requested officers' names or if any officer refused to provide their information or covered their shields. In addition, PO Amorello and PO Hartenfels both testified that they did not recall if § 87(2)(b) ever asked PO Amorello for his

name at the hospital and if he failed to provide that information. PO Anes testified that he was never by the ambulance and did not recall if § 87(2)(b) requested his or any other officers' name and that he did not refuse to provide his information or cover his shield.

Officer testimony was consistent that none of the officers recalled if § 87(2)(b) ever asked for officers' names and that no officer refused to provide their information or covered their shields. While § 87(2)(b) testified that when she was in the ambulance, officers did not provide their names upon request and covered their shields, she could not provide descriptions for any of the officers. Officer testimony was consistent that no officer refused to provide their information or covered their shields. PO Ali and PO Carbonetto's BWC ended once § 87(2)(b) was inside the ambulance and Lt. Berk's BWC did not capture any officer refusing to provide their name or cover their shields.

Additionally, § 87(2)(b) also testified that while at the hospital, she requested PO Amorello's name, which he did not provide. PO Amorello and PO Hartenfels testified that they did not recall if § 87(2)(b) ever requested PO Amorello's name at the hospital or if he provided that information. While BWC was received, the cameras were deactivated while the officers were inside the hospital as per Patrol Guide Procedure.

§ 87(2)(g)

Allegation (H) Abuse of Authority: At § 87(2)(b) in Brooklyn, officers forcibly removed § 87(2)(b) to the hospital.

Once Lt. Berk decided to enter § 87(2)(b) officers brought § 87(2)(b) to the ambulance to be removed to the hospital.

At the 1:16 mark of PO Carbonetto's BWC, PO Carbonetto repeatedly asked § 87(2)(b) if she was okay because she had blood on her. § 87(2)(b) responded she was okay and asked if he saw blood on her. PO Carbonetto confirmed he did and asked if she would like an ambulance, which she did not respond to.

At the 1:35 mark of PO Anes' BWC, he told § 87(2)(b) that if she did not go inside, she would be taken to the hospital because she was intoxicated. § 87(2)(b) denied being intoxicated and PO Anes reiterated that she was intoxicated and that he could smell it. § 87(2)(b) went back to cleaning her front yard. At the 2:07 mark, a voice off camera said they were about to call an ambulance and EDP her.

At the 2:06 mark of PO Hartenfels' BWC, § 87(2)(b) screamed multiple times for officers to "shoot me in my fucking head." No officer responded. § 87(2)(b) then asked the officers if they had a warrant and an officer told § 87(2)(b) to let her children inside her house. § 87(2)(b) then continued to yell at the officers "to shoot me in the back," "shoot me in my fucking head," and told her children that the officers were going to shoot her. At the 3:56 mark, PO Hartenfels asked § 87(2)(b) if she needed to go to the hospital, which she did not respond to. § 87(2)(b) continued to yell at the officers to leave. At the 5:38 mark, PO Hartenfels asked the other officers if they should EDP § 87(2)(b). No officer verbally responded, but they all approached § 87(2)(b). PO Hartenfels then requested an ambulance for an EDP over the radio (BR 09).

§ 87(2)(b) testified that she did not want to go to the hospital and refused to get in the ambulance

that was called.

PO Hartenfels testified that he requested EMS because § 87(2)(b)'s current mental and physical state while officers were speaking with her. § 87(2)(b) appeared intoxicated and was acting erratic and screaming at officers to shoot her in front of her children. PO Hartenfels has responded to multiple incidents involving § 87(2)(b) and domestic disputes and was aware that she had a history of drugs and alcohol and an EDP history. He did not recall whose decision it ultimately was to call an ambulance and remove § 87(2)(b) to the hospital.

PO Anes, PO Amorello, and PO Carbonetto and PO Ali's testimonies were all consistent with PO Hartenfels' that § 87(2)(b) was acting erratic and intoxicated, with the addition that PO Anes and PO Ali specifically could smell alcohol on § 87(2)(b) and she had glassy eyes, her speech was slurred, and she was swaying. No officer could recall whose decision it was to EDP § 87(2)(b) and remove her to the hospital.

Aided #§ 87(2)(b) was prepared by PO Hartenfels and noted that § 87(2)(b) was observed with a laceration on the top of her foot and was highly intoxicated and uncooperative.

An Emotionally Disturbed Person (EDP) is a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonable believes is likely to result in serious injury to himself or others. NYPD Patrol Guide Procedure 221-13 (BR 28).

§ 87(2)(g)
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§ 87(2)(g)

§ 87(4-b) § 87(2)(g)
§ 87(4-b) § 87(2)(g)
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§ 87(4-b) § 87(2)(g)

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§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 29).
- Lt. Berk has been a member of service for 11 and has been a subject in three CCRB complaints and four allegations, of which one was substantiated (BR 30):
 - 201206462 involved an allegation of physical force that was closed as exonerated.
 - 201508477 involved a substantiated allegation of premises entered/searched and an unsubstantiated allegation of discourteous language. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - 201709933 involved an allegation of physical force that was closed as complainant unavailable.

- PO Carbonetto has been a member of service for four years and has been a subject in one other CCRB complaint and five allegations, none of which were substantiated. § 87(2)(g)
- PO Amorello has been a member-of-service for eight years and this is the first CCRB complaint to which he has been a subject (BR 33).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of the date of this report, § 87(2)(b) s Notice of Claim 50-H hearing transcriptions are pending and will be added upon receipt (BR 36).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 6

Investigator:	<u>Julia Moran</u>	<u>Inv. Julia Moran</u>	<u>03/01/2022</u>
	Signature	Print Title & Name	Date

Squad Leader: Jessica Peña IM Jessica Peña 3/1/2022
Signature Print Title & Name Date

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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